

25NWCV02310 25NWCV02310

County: los-angeles

Division: Civil Law and Motion

Department: SEP

Hearing date: 2026-09-22

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Case Number: 25NWCV02310 Hearing Date: September 22, 2026 Dept: SEP

MEDINA v. O'NEILL, ET AL.

CASE NO.: 25NWCV02310

HEARING: 09/22/2026 @ 9:30 AM

#11

TENTATIVE ORDER

Plaintiff Nicole Medina's motion to quash deposition subpoenas is DENIED without prejudice.

Moving party to give notice.

Plaintiff Nicole Medina (Plaintiff) moves to quash or, alternatively, modify certain deposition subpoenas.

Background

On June 26, 2025, Plaintiff filed this personal injury action against Defendants Ronan O'Neill, Blanca Valle, and Does 1 through 25 (collectively, Defendants). The form complaint alleges that on June 29, 2023, at i-5 Southbound, 500 feet north of Tweedy Ave in the City of Norwalk, Plaintiff sustained injuries after she was first rear-ended by O'Neill and then faced a successive impact by Valle who was driving behind O'Neill. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

On October 6, 2025, Plaintiff filed an Amendment to Complaint naming Jhony E. Fuentes as Doe 1.

Legal Standard

Under Code of Civil Procedure section 1985.3 subd. (g), a consumer whose personal records are sought by a subpoena duces tecum may bring a motion to quash or modify the subpoena five days prior to the date of production.

Code of Civil Procedure section 1987.1 states the following: ٧

“(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.”

For discovery purposes, information is relevant if it might reasonably lead to admissible evidence or might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; see Code Civ. Proc., § 2017.010 [“[a]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”].) The rules are applied liberally in favor of permitting discovery. (Gonzalez, supra, 33 Cal.App.4th at p. 1546.)

Pursuant to Code of Civil Procedure section 2025.420, subdivision (a): “Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.”

Discussion

Plaintiff moves to quash multiple deposition subpoenas for production of business records issued by Defendants and “directed to PIH Health Whittier Hospital Human Resources, PIH Health Whittier Hospital Health Information Management Department, PIH Health Whittier Hospital Medical Records, and...additional custodians.” (Perez Decl., ¶ 5.)

Procedural Deficiencies

This motion must be denied on procedural grounds.

First, as argued by Defendants in opposition, Plaintiff’s motion is untimely. Defendants contend that Plaintiff filed this motion 114 days after the April 14, 2026 production date and 108 days after the April 20, 2026 production date.

“Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production.” (Code Civ. Proc., 1985.3, subd. (g).) While the Court does not deny this motion on this basis alone, the Court agrees that based on the production dates put forth by Defendants, this motion is untimely. (See *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312 [deadline is not jurisdictional].)

Next, Plaintiff failed to put forth the actual deposition subpoenas. This is significant given that this motion seeks review of multiple deposition subpoenas to an unknown amount of entities. While Plaintiff contends the deposition subpoenas are attached to Plaintiff’s counsel’s declaration, there are no attached exhibits. (See Perez Decl., ¶ 6.)

Further, on top of failing to attach the deposition subpoenas, Plaintiff did not originally provide separate statements. A separate statement is required for a motion to quash the production of documents or things at a deposition. (Cal. Rules of

Court, rule 3.1345(a)(5).) Therefore, the Court did not have access to the deposition subpoenas themselves nor the substance of the subpoenas as required through separate statements. (See Cal. Rules of Court, rule 3.1345(c).) Plaintiff, in a late reply, requests the Court accept a curative separate statement. Given the other procedural deficiencies, this request is denied.

Additionally, as argued by Defendants, Plaintiff did not meet and confer as required for her motion for a protective order. (See Code Civ. Proc., § 2025.420 [motion for protective order “shall be accompanied by a meet and confer declaration under Section 2016.040.”].) Defendants state that other than the letter with Plaintiff’s objections, Plaintiff’s counsel did not make any contact with defense counsel. (Tetzlaff Decl., ¶ 5.)

Finally, compounded by the issue that Plaintiff does not reveal how many deposition subpoenas are at issue, the deposition subpoenas may have had to be filed as separate motions. With multiple subpoenas at issue, and without knowledge of the type of deposition subpoenas, each one may have to be the subject of a separate motion with a separate filing fee and separate statement. (See Code Civ. Proc., § 2020.020, subd. (b); Gov. Code, § 70617, subds. (a), (f); Cal. Rules of Court, rule 3.1345(a)(5).)

Accordingly, in light of the multiple procedural deficiencies, most importantly the failure to provide the deposition subpoenas or the text of the subpoenas, this motion is DENIED without prejudice on procedural grounds.

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On October 6, 2025, Plaintiff filed an Amendment to Complaint naming Jhony E. Fuentes as Doe 1.

Legal Standard

Under Code of Civil Procedure section 1985.3 subd. (g), a consumer whose personal records are sought by a subpoena duces tecum may bring a motion to quash or modify the subpoena five days prior to the date of production.

Code of Civil Procedure section 1987.1 states the following:¿

“(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.”

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